

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                 |                                     |                                                       |                                               |                                 |
|---------------------------------------------------|-------------------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Andrew Ridge                     | Team:<br>Squad #8                               | CCRB Case #:<br>201706583           | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                 |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 03/22/2017 5:00 PM | Location of Incident:<br>in front of § 87(2)(b) | Precinct:<br>113                    | 18 Mo. SOL<br>9/22/2018                               | EO SOL<br>9/22/2018                           |                                 |
| Date/Time CV Reported<br>Fri, 07/28/2017 4:09 PM  | CV Reported At:<br>CCRB                         | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Fri, 07/28/2017 4:09 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. POM Abdulhadi Chalati   | 10501  | 956511 | 113 PCT |
| 2. POM Christophe Macaluso | 07382  | 955107 | 113 PCT |
| 3. An officer              |        |        |         |

| Witness Officer(s)          | Shield No | Tax No | Cmd Name |
|-----------------------------|-----------|--------|----------|
| 1. POM Timothy Molinet      | 11322     | 956941 | 113 PCT  |
| 2. POM Stephen Uniszkiewicz | 23838     | 954384 | 113 PCT  |

| Officer(s)                | Allegation                                                                                                            | Investigator Recommendation |
|---------------------------|-----------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A. An officer             | Force: An officer used physical force against § 87(2)(b) in Queens.                                                   |                             |
| B.POM Christophe Macaluso | Discourtesy: Police Officer Christopher Macaluso spoke discourteously to § 87(2)(b) in Queens.                        |                             |
| C.POM Abdulhadi Chalati   | Abuse: Police Officer Abdulhadi Chalati refused to provide his name to § 87(2)(b) in Queens.                          |                             |
| D.POM Christophe Macaluso | Abuse: Police Officer Christopher Macaluso refused to provide his name to § 87(2)(b) in Queens.                       |                             |
| E.POM Christophe Macaluso | Discourtesy: Police Officer Christopher Macaluso spoke discourteously to § 87(2)(b) in front of § 87(2)(b) in Queens. |                             |
| F.POM Christophe Macaluso | Abuse: Police Officer Christopher Macaluso refused to provide his name to § 87(2)(b) in Queens.                       |                             |
| G.POM Abdulhadi Chalati   | Abuse: Police Officer Abdulhadi Chalati refused to provide his name to § 87(2)(b) in Queens.                          |                             |

| Officer(s)                | Allegation                                                                                                                   | Investigator Recommendation |
|---------------------------|------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| H.POM Christophe Macaluso | Abuse: Police Officer Christopher Macaluso refused to provide his name to § 87(2)(b) inside the 113th Precinct Stationhouse. |                             |
| I.POM Abdulhadi Chalati   | Abuse: Police Officer Abdulhadi Chalati refused to provide his name to § 87(2)(b) inside the 113th Precinct Stationhouse.    |                             |

### Summary of Complaint

On March 22<sup>nd</sup>, 2017, at 4:30PM, § 87(2)(b) was outside his home at § 87(2)(b) in Queens, when he called 911 in regards to his landlord, § 87(2)(b), allegedly violating an order of protection. Shortly thereafter, Police Officers Christopher Macaluso, Abdulhadi Chalati, Timothy Molinet, and Stephen Uniszkiewicz, all of the 113<sup>th</sup> Precinct, arrived at the house, § 87(2)(b) watched from a distance. § 87(2)(b) attempted to show PO Macaluso and PO Chalati the order of protection, which one of them took from his hand and gave to § 87(2)(b) § 87(2)(b)'s sister, pushing her in the process (**Allegation A**). § 87(2)(b) asked why he was being arrested. In response, PO Macaluso allegedly said "Shut the fuck up (**Allegation B**)."

§ 87(2)(b) asked PO Macaluso and PO Chalati for their names, but they both allegedly refused to provide them (**Allegations C and D**). At some point shortly after this, PO Macaluso allegedly said "You're going to jail, idiot (**Allegation E**). As PO Macaluso and PO Chalati were leaving, § 87(2)(b) also asked PO Macaluso and PO Chalati for their names, and they both allegedly refused to provide them (**Allegations F and G**). As he was being processed at the 113<sup>th</sup> Precinct Stationhouse, § 87(2)(b) again asked PO Macaluso and PO Chalati for their names, and they both again allegedly refused (**Allegations H and I**).

### Mediation, Civil, and Criminal Histories

- This case was deemed unsuitable for mediation.
- The NYC Office of the Comptroller responded to a request on October 30<sup>th</sup>, 2017, indicating that no notice of claim has been filed by § 87(2)(b) or her mother—§ 87(2)(b) (BR 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)  
§ 87(2)(b)

### Civilian and Officer CCRB Histories

- This is the fourth complaint involving § 87(2)(b) at the CCRB, § 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)
- This is the fourth of four complaints involving § 87(2)(b) at the CCRB, and the first containing FADO allegations (BR05).
- PO Macaluso has been a MOS for four years, and this is the first CCRB complaint filed against him (BR06).
- PO Chalati has been a MOS for three years, and this is the first CCRB complaint filed against him (BR07).

### Findings and Recommendations

**Allegation A—Force: An officer used physical force against § 87(2)(b)**

**Allegation F—Abuse of Authority: Police Officer Christopher Macaluso refused to provide his name to § 87(2)(b) in front of § 87(2)(b) in Queens.**

**Allegation G—Abuse of Authority: Police Officer Abdulhadi Chalati refused to provide his name to § 87(2)(b) in front of § 87(2)(b) in Queens.**

§ 87(2)(b) testified that during the incident, either PO Macaluso or PO Chalati took the order of protection from his hand and gave it to § 87(2)(b) who is § 87(2)(b) (BR08). § 87(2)(b) believed that at the time that an officer did this, that officer pushed § 87(2)(b)

although he did not see this occur. § 87(2)(b) testified that he heard § 87(2)(b) asking PO Macaluso and PO Chalati for their names over the phone (BR09). After multiple contact attempts to § 87(2)(b) the mother of § 87(2)(b) during a phone call to the CCRB, § 87(2)(b) stated that § 87(2)(b) was too upset about the incident and so would not be providing a statement to the CCRB. § 87(2)(g)

**Allegation B—Discourtesy: Police Officer Christopher Macaluso spoke discourteously to § 87(2)(b) in front of § 87(2)(b) in Queens.**

**Allegation C—Abuse of Authority: Police Officer Christopher Macaluso refused to provide his name to § 87(2)(b) in front of § 87(2)(b) in Queens.**

**Allegation D—Abuse of Authority: Police Officer Abdulhadi Chalati refused to provide his name to § 87(2)(b) in front of § 87(2)(b) in Queens.**

**Allegation E—Discourtesy: Police Officer Christopher Macaluso spoke discourteously to § 87(2)(b) in front of § 87(2)(b) in Queens.**

**Allegation H—Abuse of Authority: Police Officer Christopher Macaluso refused to provide his name to § 87(2)(b) inside the 113<sup>th</sup> Precinct Stationhouse.**

**Allegation I—Abuse of Authority: Police Officer Abdulhadi Chalati refused to provide his name to § 87(2)(b) inside the 113<sup>th</sup> Precinct Stationhouse.**

During his in-person statement at the CCRB, § 87(2)(b) testified that on March 22<sup>nd</sup>, 2017, he was at home at § 87(2)(b) in Queens when he decided to call 911 in order to report that his landlord, § 87(2)(b), had violated an order of protection that he and his family had against him by interacting with § 87(2)(b) and that their neighbor, § 87(2)(b) who also lives in § 87(2)(b) in Queens, had threatened to kill him and his family (BR08). § 87(2)(b) waited in front of the house until he saw two police cars arrive at the house. Several officers exited the cars. PO Macaluso and PO Chalati came to § 87(2)(b) while the others watched.

Without saying anything, PO Macaluso took hold of § 87(2)(b)'s left arm and placed him in handcuffs. § 87(2)(b) asked PO Macaluso and PO Chalati why he was being arrested. In response, PO Macaluso said "Shut the fuck up." Some of the doors in the house had recently been damaged, and § 87(2)(b) and § 87(2)(b) who had been watching from just past two screen doors inside the house, attempted to explain to PO Macaluso and PO Chalati that § 87(2)(b) had not damaged the doors. PO Macaluso and PO Chalati ignored these explanations. § 87(2)(b) asked PO Macaluso and PO Chalati multiple times why he was being arrested, and as he did this, asked both PO Macaluso and PO Chalati for their names. PO Macaluso and PO Chalati laughed in response and told him to say what he had to say to § 87(2)(b) before they took him to the precinct stationhouse. At some point, PO Macaluso said "You're going to jail, idiot" to § 87(2)(b). PO Macaluso and PO Chalati escorted § 87(2)(b) to a police vehicle and transported him to the 113<sup>th</sup> Precinct Stationhouse.

§ 87(2)(b) waited in a front lobby space in the 113<sup>th</sup> Precinct Stationhouse until PO Macaluso and PO Chalati escorted him to the second floor of the stationhouse in order to speak with a detective. As they made their way up the stairs, § 87(2)(b) again asked PO Macaluso and PO Chalati for their names, but they said nothing in response. § 87(2)(b) never learned PO Macaluso's and PO Chalati's names, and so was unable to provide them to the CCRB at the time he filed the complaint.

§ 87(2)(b) testified that he was away from the house when he received a call from § 87(2)(b) in which § 87(2)(b) told him about the aforementioned issues with § 87(2)(b) and § 87(2)(b) (BR09). § 87(2)(b) told § 87(2)(b) to call 911 to report these crimes. § 87(2)(b) had been in his car, and came within a block of the house when he saw two police vehicle arrive outside. § 87(2)(b) parked his car and remained a block away

to observe what was happening from a distance. When § 87(2)(b) saw that PO Macaluso and PO Chalati were arresting § 87(2)(b) he called § 87(2)(b) to find out what was happening. § 87(2)(b) heard what was happening during the incident because § 87(2)(b) had her phone. § 87(2)(g)

§ 87(2)(b) made no mention of the PO Macaluso saying “You’re going to jail, idiot.”

The CCRB attempted to contact § 87(2)(b) and § 87(2)(b) both of whom live in § 87(2)(b), but they were both unresponsive to multiple contact attempts. The CCRB contacted § 87(2)(b) who during the second phone conversation clarified that he did not witness the incident and that video footage from the exterior of the house was no longer available.

PO Macaluso testified that on his way to § 87(2)(b), he remembered there was an open complaint for someone living at the address, and called another officer, who confirmed that this was for § 87(2)(b) (BR10). After arriving at the house, PO Macaluso and PO Chalati spoke with § 87(2)(b) outside. § 87(2)(b) spoke to PO Macaluso and PO Chalati about the alleged violation of the order of protection. PO Macaluso looked at § 87(2)(b)’s order of protection and informed him that § 87(2)(b) had not violated the order of protection because only § 87(2)(b) and not § 87(2)(b) had an order of protection against § 87(2)(b). After this discussion, PO Macaluso and PO Chalati, who spoke to § 87(2)(b) an equal amount, told § 87(2)(b) that they were going to arrest him because he had an open complaint against him. § 87(2)(b) raised his voice denied committing the crime listed in the complaint. PO Macaluso and PO Chalati maintained calm demeanors and placed § 87(2)(b) in handcuffs. PO Macaluso at no point told § 87(2)(b) to stop talking and used no profanity. § 87(2)(b) did not ask for PO Macaluso’s and PO Chalati’s names, either in front of the house or at the stationhouse, where they took him after he was placed in handcuffs. PO Macaluso could not recall if he ever told § 87(2)(b) that he was going to jail, but never called § 87(2)(b) an “idiot.” § 87(2)(b) did calm down until he spoke to a detective at the stationhouse.

PO Chalati testified that he could not remember if PO Macaluso used any profanity against § 87(2)(b) (BR11). PO Chalati could not remember if PO Macaluso told § 87(2)(b) that he was going to jail and if PO Macaluso ever called § 87(2)(b) an “idiot.” PO Chalati could not remember if § 87(2)(b) ever asked him for his name and did not know if he asked PO Macaluso this. PO Chalati could not remember if he or PO Macaluso ever refused to provide this information.

PO Molinet testified he and PO Uniszkiewicz responded to the job, and that when he arrived on scene, PO Macaluso and PO Chalati were standing by the front door of the house (BR12). The front door of the house was open, but PO Molinet could not see if someone was in the door. PO Molinet and PO Uniszkiewicz waited in their police car for three minutes until PO Macaluso and PO Chalati told them they that they did not need them to stay. After this, PO Molinet and PO Uniszkiewicz left. PO Molinet did not witness any interaction between PO Macaluso, PO Chalati, and any civilians.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted]  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted].

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Squad: 8

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date